

Terms and Conditions of Consumer Finance Service

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Contents

1. Terms and Definitions.....	1
2. General Provisions	2
3. Main Terms of the Credit, calculations and Payments.....	4
4. Specifics of Buying Products on Credit.	5
5. Communication between the Parties, Exchange of Information.	7
6. Early termination of the Installment Debt Repayment Agreement. Prepayment of the Credit.	8

1. Terms and Definitions

- 1.1. **Bank or We** - Ameriabank CJSC.
- 1.2. **General Terms and Conditions** - General Terms and Conditions of Service for Individuals (11RBD RL 72-01-01)¹.
- 1.3. **Consumer Finance Tariffs** - Terms of Consumer Finance², as well as other terms of consumer finance services applicable under the campaigns held by the **Bank**, which may differ from these terms or apply in addition to them.
- 1.4. **Company** - A legal entity or an individual entrepreneur cooperating with the **Bank**, which provides services, performs works and/or sells goods to individuals.
- 1.5. **Product** - Products sold by the **Company**, including **Solar Panels**, the purchase of which may be financed by the **Bank** in accordance with the **Consumer Finance Tariffs** and these terms and conditions.
- 1.6. **Solar Panels** - Solar plants, water heaters and other similar items.
- 1.7. **Company Services** - Services provided and/or works performed by the **Company**, the purchase of which may be financed by the **Bank** in accordance with the **Consumer Finance Tariffs** and these terms and conditions.
- 1.8. **Customer or You** - An individual purchasing **Products** or **Services** from the **Company** under installment arrangements in accordance with these terms and conditions.
- 1.9. **Party or Parties** - The **Bank** or the **Customer** whenever used in singular, and the **Bank** and the **Customer** together whenever used in plural.
- 1.10. **Consumer Finance Service** - The service provided by the **Bank**, including the following actions performed in accordance with these terms and conditions and the **Consumer Finance Tariffs**:
 - 1.10.1. Signing an **Installment Sale Agreement** / **Paid Services Agreement**/ **Mixed Agreement**,
 - 1.10.2. Assignment of monetary claim under the **Installment Sale Agreement**/ **Paid Services Agreement**/ **Mixed Agreement** by the **Company** to the **Bank** and acquisition of the assigned monetary claim by the **Bank**,
 - 1.10.3. **Acceptance of Offer** (execution of **Installment Debt Repayment Agreement**)
- 1.11. **Installment Sale Agreement** - Agreement signed between the **Company** and the **Customer** in the form approved by the **Bank**, according to which the **Company** sells the **Product** to the **Customer** on the installment plan. From the time the **Product** is delivered to the **Customer** up to the payment, it is considered pledged at the **Company** to secure respective payment obligations of the **Customer**.
- 1.12. **Paid Services Agreement** - Agreement signed between the **Company** and the **Customer** in the form approved by the **Bank**, according to which the **Company** provides **Services** to the **Customer**, and the **Customer** agrees to pay for the **Service** received.

¹ General Terms and Conditions of Service for Individuals (11RBD RL 72-01-01), approved by Management Board Resolution # 02/03/15 as of February 4, 2015. Available at <https://ameriabank.am/en/useful-links>

² Ameriabank CJSC Terms of Consumer Finance (11RBD PL 72-34), approved by Management Board Resolution # 01/35/17 as of November 22, 2017. Available at <https://ameriabank.am/en/useful-links>

- 1.13. **Mixed Agreement** - Agreement signed between the **Company** and the **Customer** in the form approved by the **Bank**, according to which the **Company** sells the **Product** and provides **Services** to the **Customer** on the installment plan. Furthermore, from the time the **Product** is delivered to the **Customer** until performance of the **Customer's** obligations under the **Mixed Agreement**, the **Product** purchased shall be considered pledged at the **Company** to secure performance of the **Customer's** payment obligations under such agreement.
- 1.14. **Solar Panels Supply and Works Agreement** - Agreement signed between the **Company** and the **Customer** in the form approved by the **Bank**, according to which the **Company** supplies **Solar Panels** to the **Customer** and performs related installation, configuration, testing and commissioning works on the installment plan. Furthermore, from the time the **Product** is delivered to the **Customer** until performance of the **Customer's** obligations under the **Mixed Agreement**, the **Product** purchased shall be considered pledged at the **Company** to secure performance of the **Customer's** payment obligations under such agreement.
- 1.15. **Installment Purchase Agreement - Installment Sale Agreement, Paid Services Agreement, Mixed Agreement and/or Solar Panels Supply and Works Agreement.**
- 1.16. **Installment Debt Repayment Agreement** - Installment Debt Repayment Agreement executed between the **Bank** and the **Customer** in the form approved by the **Bank** via **Acceptance** of the **Offer** by the **Bank** in accordance with these terms and conditions. The **Installment Debt Repayment Agreement**, these terms and conditions and the **Consumer Finance Tariffs** together stipulate the terms of how the **Customer** is supposed to return the amount of the **Company's** claim arising out of the **Installment Purchase Agreement** to the **Bank** in case the **Company** assigns such claim to the **Bank**.
- 1.17. **Offer** - Written offer to enter into an **Installment Debt Repayment Agreement** presented by the **Customer** to the **Bank** in the form approved by the **Bank**, and where it is technically possible to provide consumer finance at the **Company's** premises in paperless manner, also the **Bank's** respective template on making inquiries for the purpose of processing the personal data and on the manner of approval of the documents under consumer finance, along with the **Installment Debt Repayment Agreement**, with indication of the essential terms of the **Credit** if financed by the **Bank**, including those specified in clause 3.1 of these terms and conditions.
- 1.18. **Acceptance** - Act of accepting the **Offer** by the **Bank** in accordance with the rules prescribed by these terms and conditions and the **Offer**. **Acceptance** of the **Offer** by the **Bank** results in execution of an **Installment Debt Repayment Agreement** between the **Bank** and the **Customer**.
- 1.19. **Credit** - The amount owed by the **Customer** to the **Bank** as of the effective date of the Agreement.
- 1.20. **Interest rate** - Nominal annual interest rate specified in the **Installment Debt Repayment Agreement**.
- 1.21. **Interest** - The amount of interest accrued on the **Credit** at the set interest rate.
- 1.22. **Service Fee** - The service fee specified in the **Installment Debt Repayment Agreement**.
- 1.23. **Schedule** - The schedule for repayment of the **Credit**, **Interest** and the **Service Fee** specified in Annex 1 to the **Installment Debt Repayment Agreement** forming an integral part thereto.
- 1.24. **Fines and penalties** - Fines and penalties under the **Installment Debt Repayment Agreement** payable for non-performance or improper performance of the payment obligations under the **Installment Debt Repayment Agreement**.

2. General Provisions

- 2.1. These Terms and Conditions set out the main conditions of the relationships arising in connection with provision of the **Consumer Finance Service** by the **Bank** to the individuals. The **Bank** may also provide consumer finance to the **Customer** online, in which case the **Customer**, by selecting on the **Company's** website the **Product(s)** and/or the **Company's service(s)** payable under consumer finance or by opening the link and/or QR code sent to the **Customer** by the **Company**, generated by the **Company's** employee and containing the **Product(s)** and/or the **Company's service(s)** payable by the **Customer** under consumer finance, as well as the price of the **Product(s)** and/or **service(s)**, is redirected to the Bank's online consumer finance domain to proceed with the finance process. The **Bank** may set a validity term for the link and/or QR code.
- 2.2. These terms and conditions constitute **Service Terms** as defined in the **General Terms and Conditions**. The **General Terms and Conditions** apply to the legal relationships governed by these terms and conditions to the extent that these terms and conditions do not provide otherwise.

- 2.3. These terms and conditions are an invitation to make an **Offer**, and the legal relationship between the **Parties** under these terms and conditions arises / enters into force upon submission of the **Offer** by **you** to the **Bank** in accordance with these terms and conditions and the **Consumer Finance Tariffs** on terms satisfactory to the **Bank**, as well as upon acceptance of the **Offer** by the **Bank**. Once the **Offer** is accepted by the **Bank**, the **Offer**, these terms and conditions and the **Consumer Finance Tariffs** together shall constitute one and the same agreement concluded between the **Parties**, valid until the full and proper performance of the obligations under the **Installment Debt Repayment Agreement** by the **Parties**.
- 2.4. If submitted in paper, the **Offer** shall be made in 2 (two) counterparts equal in legal effect. The **Customer** and the **Bank** receive one counterpart each. The offer submitted online, as well as the offer submitted at the **Company's** premises (where it is technically possible to sign/seal the documents between the **Parties** in electronic manner) is made in electronic form and becomes available to the **Customer** when sent by the **Bank** to the **Customer's** email.
- 2.5. The **Installment Debt Repayment Agreement** is considered to be signed on the day when the **Bank** sends the **Acceptance** notice, with the venue being the location of the **Bank**. The **Acceptance** shall be performed by sending an SMS about acceptance of the **Offer** by the **Bank** to any of **your** mobile numbers specified in the **Offer** within 5 (five) calendar days (term for acceptance) upon signing of the **Offer** by **you**, unless otherwise agreed in connection with the manner and timing for acceptance of the **Offer**.
- 2.6. Where the **Bank** sends the **Acceptance** notice to any of **your** mobile numbers specified in the **Offer**, the **Acceptance** notice shall be deemed received by **you** provided that **you** have not notified the **Bank** in writing about the change of the respective mobile numbers.
- 2.7. In case of sending the **Acceptance** notice, other notices and information to **your** contact data specified in the **Offer**, the risk of **Third party** access to them shall be borne by **you**.
- 2.8. The **Bank's** actions towards performance of the terms of the agreement specified in the **Acceptance** notice within the time frames defined for the **Acceptance** shall be deemed **Acceptance** of the **Offer** submitted in paper.
- 2.9. The **Offer** may not be recalled within the term set for acceptance.
- 2.10. Signing of the **Installment Debt Repayment Agreement** proves that the **Company's** assigns its monetary claim to the **Customer** to the **Bank**, such claim arising out of the **Installment Purchase Agreement** signed between the **Customer** and the **Company** and specified in the **Installment Debt Repayment Agreement**. According to the terms therein contained, the **Bank** agrees to enable the **Customer** to pay the amount of the respective debt in installments, and the **Customer** agrees to repay it together with the interest and the service fees. The **Acceptance** shall be at the same time a notice on the assignment of the monetary claim specified in the **Offer**, hence from the time of its receipt **you** shall be considered to have been notified about the assignment to the **Bank** of the **Company's** monetary claim arising out of the relevant agreement signed with the **Company** and specified in the **Offer**.
- 2.11. Any and all references to the **Installment Debt Repayment Agreement** shall include the **Offer**, these terms and conditions and the **Consumer Finance Tariffs** forming an integral part of the **Installment Debt Repayment Agreement**, unless otherwise explicitly stated.
- 2.12. If any portion of any condition or provision of the **Installment Debt Repayment Agreement** is held by a relevant authority to be invalid or unenforceable, for any reason, such provision shall have a limited interpretation and shall not affect the validity of other provisions and conditions of the **Installment Debt Repayment Agreement**, which shall continue in force and be enforceable to the maximum extent allowed by the **Legislation**.
- 2.13. Any amendment to these terms and conditions that may apply to the relationships between the **Parties** shall be made via a respective reference in the **Offer** or via covenants signed in addition to the **Installment Debt Repayment Agreement** which may be executed at any stage of the service upon mutual consent of the **Parties**.
- 2.14. We shall provide information about non-performance or improper performance of the **your** payment obligations under the **Installment Debt Repayment Agreement** to the **Credit Bureau** and/or the credit registry of the central bank of Armenia within 3 (three) business days in accordance with the approved procedure. **You** understand and confirm that **you** are aware that information on overdue obligations, submitted to the **Credit Bureau**, may affect **your** credit history and future attempts to get financial instruments in an adverse manner.
- 2.15. Where the **Party's** obligations under the **Installment Debt Repayment Agreement** are secured by collateral, and such collateral has been damaged or destroyed, that **Party** shall within the term agreed with the **Bank** restore the collateral or replace it with other equivalent collateral to the reasonable satisfaction of the other **Party**, even if such damage or destruction was the result of force majeure.
- 2.16. We have the right to revise these terms and conditions and the **Consumer Finance Tariffs** unilaterally by notifying **you** in the manner prescribed by the **General Terms and Conditions**.

- 2.17. The amount of the Credit under the **Installment Debt Repayment Agreement** may be refinanced out of the **Bank** borrowings, which will make it possible to apply a lower **Interest Rate** and/or **Service Fee** rate to the eligible **Customers**, as compared to the rate that would apply without refinancing, all other things being equal (the exact **Interest Rate** and/or **Service Fee** shall be specified in the **Offer**). In such cases, if, nonetheless, refinancing is rejected or canceled (terminated) or terms of refinancing are modified due to non-compliance of the credit with the terms of refinancing, and/or absence of available funds at the refinancing organization, and/or change of the interest rate on the loan issued to the **Bank** by the refinancing organization, and/or termination of the agreement executed between the **Bank** and the refinancing organization, and/or for other reasons prescribed by the agreement, the **Bank** has the right to revise the **Interest Rate** and/or the **Service Fee** unilaterally during the term of the **Installment Debt Repayment Agreement** so as to align it with the rate that would apply in the absence of refinancing. Where the **Interest Rate** and/or the **Service Fee** are modified in the cases specified above, their maximum size shall be determined by the **Offer**. In any case, the revised **Interest Rate** and/or the **Service Fee** may not exceed the maximum size of the **Interest Rate** and/or the **Service Fee** envisaged under the **Consumer Finance Tariffs**, and the annual percentage rate changed as a result of the **Interest Rate** and/or the **Service Fee** revision may not exceed the maximum annual percentage rate specified in the **Consumer Finance Tariffs**. We shall notify **you** about the change specified herein in accordance with these terms and conditions at least 7 (seven) business days in advance. Such notice shall be a basis for application of the revised **Interest Rate** and/or the **Service Fee** from the date specified in the notice.
- 2.18. The following changes (including but not limited to) in circumstances shall not be considered material and hence shall not be used as a basis for termination or modification of the **Installment Debt Repayment Agreement** pursuant to the **Legislation** governing material change of circumstances: (i) current or pending deterioration of the **Customer's** financial condition, including due to changes in market conditions or market environment, financial or other crisis, such threat or its worsening, (ii) loss of the **Customer's** property or sources of income, any fluctuations in their composition and/or frequency and/or volume; and/or changes in any circumstances affecting the **Customer's** paying capacity; changes in the scope or termination of any benefits provided by any Government agency or other entities (including, but not limited to subsidy, refinancing, cofinancing for any part of obligation or terms of refund/financing of any expenses aimed at performance of any part of obligation, tax or customs benefits), (iii) volatility of exchange rates and/or restrictions related to border controls.

3. Main Terms of the Credit, calculations and Payments.

- 3.1. The specific terms of the **Credit**, including, but not limited to, the amount of the **Credit**, nominal annual interest rate, annual percentage rate, **Service Fees**, total cost, **Fines** and **Penalties**, the collateral securing performance of the obligations under the **Installment Debt Repayment Agreement**, as well as the **Customer**-preferred means of the communication between the **Parties** under the **Installment Debt Repayment Agreement** shall be specified in the **Offer**.
- 3.2. The **Credit** shall be provided in a cashless form lump-sum. The **Credit** repayment method shall be annuity, i.e. equal installments consisting of a portion of **Credit**, a portion of **Interest** and a portion of the **Service Fee**.
- 3.3. The **Interest** shall accrue on the outstanding amount of the **Credit** daily on the basis of a 365-day year. The **Service Fees** shall accrue on the amount of the **Credit** monthly at the beginning of each month.
- 3.4. The size of the annual percentage rate and the total cost specified in the **Offer** shall be determined as of the date when the **Offer** is made and may be revised during the duration of the **Installment Debt Repayment Agreement** by the **Bank** in the cases and in accordance with the procedure specified in these terms and conditions. Such revision may result from the change in the size of the **Service Fees**, repayment of the **Credit** by the **Customer** before the date specified in the **Installment Debt Repayment Agreement** or due to the change of other components included in their calculation.
- 3.5. The **Customer** shall repay the amount of the **Credit**, **Interest** and **Service Fees** to the **Bank** in accordance with the **Schedule**.
- 3.6. The **Amount** of the **Credit**, **Interest** and **Service Fees** shall be deemed paid from the time such amounts are paid to the **Bank's** teller or are credited to the **Bank's** correspondent account.
- 3.7. Any payment **you** make under the **Installment Debt Repayment Agreement** shall be used for the repayment of **your** indebtedness under the **Installment Debt Repayment Agreement** in a succession determined by the **Bank**.
- 3.8. **You** give **your** consent and instruction for the **Bank** to allow any third party applying to the **Bank**, that will possess information about **your** credit obligations to the extent satisfactory to the **Bank**, to repay **your** credit obligations. In such cases, the **Third Party** may gain access to information about **you** that contains banking secrecy.
- 3.9. The **Bank** has a right to charge the amounts payable to the **Bank** by **you** under the **Installment Debt Repayment Agreement** (including the amount of the **Credit** and/or **Interest** and/or **Service Fees** and/or **Fines** and **Penalties** (if any), and/or other

amounts payable to the **Bank** under the **Installment Debt Repayment Agreement**) to any account (if any) **you** hold with the **Bank**, including current, card and deposit accounts, through direct debiting without **your** further instruction or consent. The **Bank** shall be entitled to charge the specified amounts directly on the date such amounts become due and/or on the dates following that date, until actual payment (including payment through direct debiting) date. Where there are no sufficient funds on **your** AMD accounts for direct debiting of the payable amounts, the **Bank** shall charge the respective amounts to **your** accounts in other currency by converting the payable amounts to the required currency at the then effective rate of the **Bank**. The **Bank** shall exercise the right specified in this clause at its sole discretion and **you** may not further refer to or rely upon this clause for (i) disputing accrual of the fines and penalties envisaged under the **Installment Debt Repayment Agreement** for non-performance or improper performance of **your** payment obligations under the **Installment Debt Repayment Agreement** and (ii) charging of such fines and penalties by the **Bank**.

- 3.10. Liabilities under this **Installment Debt Repayment Agreement** can be subject to offset only upon consent of the **Bank**.
- 3.11. The **Bank** has the right to assign the monetary claim to the **Customer** arising out of the **Installment Debt Repayment Agreement** and its rights over the collateral to the third parties. Starting from the time the monetary claim is assigned to the **Third parties**, the accrual of the **Interest** and the **Service Fees** shall terminate, unless otherwise stated in the assignment notice sent to **you**. From the time of the monetary claim assignment, any other terms of the **Installment Debt Repayment Agreement** relating to such monetary claim (including **your** rights and responsibilities) shall continue to apply in the same manner to the person that has acquired such monetary claim except for the terms the validity of which was the result of the special creditor status under the **Installment Debt Repayment Agreement**, including availability of special banking permit (license).

4. Specifics of Buying Products on Credit.

- 4.1. In case of buying **Products** in the scope of **Consumer Finance Service**, **you** shall pledge the **Product** specified in the **Offer** at the **Company** to secure proper performance of the obligations under the **Installment Debt Repayment Agreement**, such pledge effective from the time the **Installment Debt Repayment Agreement** comes into force. In such case, **you** shall act as a pledgor.
- 4.2. The pledged **Product** shall not be transferred to the **Bank** but shall remain in **your** possession.
- 4.3. **You** have the right to possess and use the pledged **Product** as per its intended purpose and freely manage the **Product** after performance of the payment obligations to the **Bank** in full.
- 4.4. If the **Product** purchased comes with a warranty, the warranty service of the sold **Product** will be carried out by the **Company** in accordance with the warranty certificate and the rules/conditions set by the **Company**.
- 4.5. The delivery of the **Product** purchased by **you** through consumer finance received from the **Bank** will be carried out by the **Company** in the manner agreed between the **Company** and **you**.
- 4.6. The LTV (**Credit** amount to the value of collateral) ratio shall be specified in the **Offer**. The **Bank** doesn't plan revaluation of the collateral, termination of the pledge or imposing additional pledge requirement during the validity term of the **Installment Debt Repayment Agreement**, hence the LTV ratio shall remain unchanged during the term of the **Installment Debt Repayment Agreement**. Nonetheless, in some cases if there is any change in the LTV ratio that occurs due to the circumstances not envisaged at the time of execution of the **Installment Debt Repayment Agreement**, and such change results in the change in the **Installment Debt Repayment Agreement** terms, **you** shall be notified about the specified change via execution of an amendment to the **Installment Debt Repayment Agreement** signed with the **Bank** to incorporate the change in the respective terms of the **Installment Debt Repayment Agreement**. Where revision of the LTV ratio does not result in the change of the **Installment Debt Repayment Agreement** terms, the **Bank** shall notify **you** in writing or verbally as requested by **you**, within 5 (five) business days upon submission of such request.
- 4.7. The **Bank** has the right to:
 - 4.7.1. check the availability, condition, maintenance conditions of the **Product** used as collateral, for which **you** shall ensure the necessary environment and not prevent the **Bank** from exercising this right;
 - 4.7.2. request **you** to take appropriate measures to ensure proper maintenance of the **Product** used as collateral and to terminate any action likely to result in its destruction or damage to it;
 - 4.7.3. obtain insurance of the **Solar Panels** used as collateral against the risks determined by the **Bank**, such insurance being on the terms and conditions satisfactory to the **Bank** through an acceptable insurance company, and the **Customer** being specified as a beneficiary. The notice on the insurance shall be sent to **you** by the **Bank** or the respective insurance company. The list of insurance companies acceptable for the **Bank** and their essential terms of

insurance are accessible at the **Bank's website**³. The terms must be also provided by insurance companies at the time of signing of insurance agreement, in the manner stipulated by the **Legislation** (in paper or electronic form or via specifying the public source where such terms may be obtained). The **Bank** or the respective insurance company shall notify **you** about the fact of insurance by providing the essential terms of insurance or indicating the public source where such terms are available. In case of failure to receive the notice within 10 (ten) days, **you** shall apply to the **Bank** for obtaining the terms or request the **Bank** to provide the contact data of the insurer for obtaining the terms from the insurer. **You** shall read the essential terms and shall bear the risk of all possible adverse consequences for the failure to read them. Unavailability of the links to the terms specified herein or failure to read the essential terms of insurance for any reason shall not, in any way, affect the terms of the **Installment Debt Repayment Agreement** and/or their interpretation.

- 4.7.4. **Your** right to claim insurance compensation for the **Solar Panels** pledged as collateral (from the time such right arises), as well as the amount of the insurance compensation transferred in the name of the beneficiary, i.e. **you**, in connection with the **Solar Panels** used as collateral (from the time such amount is transferred to the **Bank**) shall be pledged by **you** in favor of the **Bank** by virtue of the **Installment Debt Repayment Agreement**, to secure proper performance of **you** obligations under the **Installment Debt Repayment Agreement**, including the amount of the **Credit, Interest, Service Fees** and other payments under the **Installment Debt Repayment Agreement**. By signing the **Installment Debt Repayment Agreement**, **you** give **your** unconditional and irrevocable consent that, upon the consent (discretion) of the **Bank**, the amount of the insurance compensation received in connection with the **Solar Panels** used as collateral and **your** right to claim such compensation may be used solely for performance of **your** obligations under the **Installment Debt Repayment Agreement** (including early repayment) or renovation/restoration of the **Solar Panels** used as collateral, based on their pledge in favor of the **Bank**.
- 4.7.5. The **Bank** shall determine the cases and conditions for execution and termination of the insurance contracts, which the scope of which the **Bank** shall also have the right to terminate the insurance contracts for the **Solar Panels** used as collateral signed in accordance with this clause, in the event (*inter alia*) the **Bank** assigns its monetary claim to the third parties in accordance with these terms and conditions. The **Bank** shall determine at its sole discretion whether to exercise its right to obtain insurance for the **Solar Panels** as specified in this clause. Absence of the insurance, whether in whole or in part, shall not be considered as a breach of its obligations and/or negligence by the **Bank**. In addition, in no event such circumstances may be referred to as a basis for claiming compensation of the damages in case of loss, destruction, damage of the **Solar Panels** used as collateral, etc., in which case the **Bank** shall not be held liable in any manner since the **Bank** may obtain insurance for the **Solar Panels** used as collateral to mitigate its own risks while acting in the capacity of a pledgee. All costs of obtaining insurance for the **Solar Panels** used as collateral shall be borne by **you** via reimbursing to the **Bank** of the costs incurred by the latter. In such case, the insurance costs shall be included in the **Service Fee**.
- 4.7.6. The **Bank** has the right to receive from and provide to the insurer any information in relation to the insurance of the **Solar Panels** used as collateral that contains insurance secrecy.
- 4.8. **We** will not be liable for:
- 4.8.1. The quality of the **Product**, the term of delivery of the **Product** to **you**, as well as for the breach of such term by the **Company**. Any complaint and/or demand and/or question regarding the **Company's** products should be submitted to the **Company** in the manner established by the latter.
- 4.8.2. The updatedness, completeness and accuracy of the information posted on the **Company's** website, the **Company's** products, their availability/being in stock, specifications, features, prices, purchase possibilities and order, any discrepancy/change in any information posted on the **Company's** website, as well as the impossibility of the actual sale of the **Product** for any reason at the time of purchase. **You** cannot file any claim to the **Bank** in relation to the above specified, including demanding compensation for the losses, expenses or lost profits incurred as a result of any and all cases listed in this clause
- 4.9. **You** shall:
- 4.9.1. maintain the pledged **Product** properly and refrain from actions which may result in deterioration of the quality or destruction of the pledged **Product**;

³ List of insurance companies: <https://ameriabank.am/en/useful-links>

- 4.9.2. take necessary measures to protect the pledged **Product** (including from the unauthorized actions and claims of third parties) and forthwith notify the **Bank** about any adverse events resulting in deterioration of the condition of the pledged **Product** or about any unauthorized actions;
- 4.9.3. upon the **Bank's** request, in case of non-performance or improper performance of the obligations under the **Installment Debt Repayment Agreement**, provide the pledged **Product** to the **Bank**, based on an acceptance act, for the latter to change its storage location;
- 4.9.4. upon the **Bank's** request notify the **Bank** about the location of the **Product** used as collateral and allow the **Bank** to check the availability and conditions of the **Product**;
- 4.10. In case of failure in performance or improper performance of obligations under this **Installment Debt Repayment Agreement** by **you**, the **Bank**, subject to the **Legislation**, shall be entitled to enforce its security interest in the pledged **Product**, once the liabilities become overdue.
- 4.11. In case of failure in performance or improper performance of obligations under the **Installment Debt Repayment Agreement** by **you**, the **Bank** has the right to foreclose on the pledged **Product** and sell it through a judicial procedure or by any out-of-court method not prohibited by the **Legislation**. Moreover, the **Bank** has the right to sell the pledged **Product** on behalf of **you** at the public auction (hereinafter the "**Auction**") in accordance with the **Legislation**.
- 4.12. In case **you** fail to perform **your** obligations under the **Installment Debt Repayment Agreement** or perform them improperly, the **Bank** shall give written notice to **you** in a due manner, and, where required so by the **Legislation**, to the registering authority as well, notifying about the enforcement of the pledged **Product** through an out-of-court procedure (hereinafter the "Enforcement Notice"), after which the **Bank** shall have the right to take reasonable measures to store, maintain and protect the pledged **Product**. **You** shall not hinder the **Bank** in such actions and shall ensure that the **Bank** has a possibility to dismantle and transport the pledged **Product**. **You** shall provide the pledged **Product** to the **Bank**, on the basis of an acceptance act, together with all the related accessories and supporting documents (data sheets, technical specifications, quality certificates, user manual, etc.) and other documents required by the **Bank**. Furthermore, the transfer of the pledged **Product** and execution of an acceptance act in accordance with this clause shall not be deemed enforcement of the pledged **Product** and in no event it may be construed and/or interpreted as the enforcement of the pledged **Product** by such transfer or execution of the acceptance act.
- 4.13. 2 (Two) months after the delivery of the Enforcement Notice to **you** and, where required so by the **Installment Debt Repayment Agreement**, to the registering authority, the **Bank** shall sell the pledged **Product** in accordance with the **Legislation** by any method not prohibited by the **Legislation**.
- 4.14. **You** may incur additional expenses in case of the sale of the pledged **Product**. After the enforcement and sale costs, including taxes, have been repaid out of the proceeds of sale of the pledged **Product**, the **Bank** shall withhold the full amount of its claims under the **Installment Debt Repayment Agreement** and return the rest of the proceeds to **you**.
- 4.15. Should the proceeds from the sale of the pledged **Product** be insufficient to repay the **Bank's** claims in full volume, the **Bank** may foreclose on **your** property in the manner stipulated in the **Legislation**.
- 4.16. From the time of enforcement and sale of the pledged **Product**, and origination of the new owner's title to the **Product** used as collateral, **your** rights over the collateral shall terminate.
- 4.17. In case of non-performance of the obligations under the Enforcement Notice in full and in the time frames specified in the notice, upon expiry of the specified period such obligations (outstanding **Credit** balance, **Interest** accrued by that time, **Service Fees**, **Fines** and **Penalties** and other charges) shall be deemed overdue liabilities as defined under the **Legislation**, i.e. **you** shall be entitled to terminate the out-of-court enforcement and sale of the **Product** used as collateral once they perform the overdue liabilities in full.
- 4.18. **You** confirm that in addition to this chapter of these terms and conditions, **you** have also read the procedure established by Legislation for the out-of-court enforcement of collateral, and fully understand and accept the consequences arising out of the application of the same by the **Bank**.

5. Communication between the Parties, Exchange of Information.

- 5.1. **You** agree that the **Bank** may apply the manner of notification specified in the **Installment Debt Repayment Agreement** in any communication with **you**, as well as in case of non-performance or improper performance of obligations by **you**, including for delivery of extrajudicial enforcement notices, court notices/claims/advance claims/materials/documents.

- 5.2. The **Bank** shall give **you** at least 1 (one) day prior notice about outstanding liabilities in the manner specified by **you** in the **Offer** (by SMS and electronically), as well as about sending the information on non-performance or improper performance of the payment obligations under the **Installment Debt Repayment Agreement** you to the **Credit Bureau** and/or the Credit Registry of the Central Bank of Armenia in the established manner.
- 5.3. The **Bank** has the right to study **your** financial condition and to request relevant documents and information, and **you** agree to facilitate conducting of such study, if necessary, and to provide all the required documents and information within the time frame set by the **Bank**.
- 5.4. By submitting **your** personal identification documents to the **Company's** employee for the purpose of obtaining consumer finance, **you** agree that, in order to ensure the accurate completion of the **Application**, the personal details contained in the personal identification documents submitted by **you** will be generated automatically instead of manual input thereof, for which purpose the **Company's** employee will send inquiries to the organizations running the respective databases and place the obtained into the appropriate fields of the **Application**.
The consent contained herein will remain valid for the entire duration of the legal relationship between **you** and the **Bank**, subject to the **Customer's** verbal request to obtain consumer finance from the **Bank**. The **Client** acknowledges and agrees that the information specified in this clause is provided to the **Bank**.
- 5.5. Hereby the **Parties** agree that in case **you** make a partial repayment of the **Credit** before the due date, the **Bank** shall make the new repayment schedule available to **you** via Online/Mobile Banking system (if any) or shall provide it to **you**, at **your** request and discretion, either in person on the **Bank** premises or send it to **your** email address. Notwithstanding the way of delivery, the new repayment schedule shall be provided to **you** bearing the signature of the **Bank's** authorized representative and the **Bank's** stamp, without **your** signature.
- 5.6. **You** hereby authorize the **Bank** to provide any information in the scope of provision of the consumer finance service to **you** and in connection with it and receive such information, including the agreement package, throughout the term of the **Installment Debt Repayment Agreement**, irrespective of whether it contains banking and/or trade secret or not.

6. Early termination of the Installment Debt Repayment Agreement. Prepayment of the Credit.

- 6.1. The **Bank** has the right to demand from **you** to repay the **Credit**, Interest accrued as of the payment date, **Services Fees**, **Fines** and **Penalties** and other amounts payable to the **Bank** under the **Installment Debt Repayment Agreement** (if any), whether with termination of the **Installment Debt Repayment Agreement** or without it, by giving at least 7 (seven) business days advance notice to **you** in the manner prescribed by the **Installment Debt Repayment Agreement** if:
 - 6.1.1. the data (documents and other information) provided at any time by **you** are found to be untrustworthy or false;
 - 6.1.2. **you** fail to perform any obligation (including payment obligations) under the **Installment Debt Repayment Agreement** or perform them improperly;
 - 6.1.3. **you** are found to have or have had overdue financial commitments and/or classified indebtedness to the **Bank** and/or to **Third parties**;
 - 6.1.4. there are circumstances expressly evidencing that the amount of the **Credit**, **Interest** and **Service Fees** will not be repaid within the term specified in the **Installment Debt Repayment Agreement** (including bankruptcy or preconditions for bankruptcy);
 - 6.1.5. **your** assets (property) are under or become subject to lien or arrest or become otherwise encumbered under the **Legislation** and are not immediately released;
 - 6.1.6. there are judicial, criminal, administrative, insolvency or other proceedings initiated against **you** by Government authorities, which are likely to affect **your** financial standing and/or stability in a materially adverse manner;
 - 6.1.7. there are other grounds stipulated in the **Legislation** and/or the **General Terms and Conditions**.
- 6.2. **You have the right to:**
 - 6.2.1. Perform the payment obligations under the **Installment Debt Repayment Agreement** fully or in part without paying any fines and penalties; in case of early settlement of payment obligations under the **Installment Debt Repayment Agreement**, the total credit cost shall be proportionally reduced by the amount of the **Interest** (calculated on a daily basis) and **Service fees** (calculated on monthly basis).
 - 6.2.2. Terminate the **Installment Debt Repayment Agreement** during the cooling-off period provided for by the **Legislation**, at **your** sole discretion, for no reason, in accordance with the procedure stipulated by the **Legislation**.

- 6.3. Where **you** terminate the **Installment Debt Repayment Agreement** before the due date based on termination of the **Installment Purchase Agreement**, **you** shall make settlements with the **Bank** and the **Company** within 2 (two) business days and sign a settlements act (hereinafter – the **Act**). Such **Act** shall state whether or not the parties have any claims and obligations to each other, and where there are such claims and obligations, the **Act** shall define the amount and **Parties** thereof. **You** shall pay to the **Bank** and/or the **Company** any amount payable under the **Act** (if any) within 1 (one) business day upon signing of the **Act**.